

Delivery Address

ORGANIC PHARMACEUTICALS LLC
Territory of 2nd kilometer of the
Okulovka-kulotino Highway house1 Bld2 R7
174350 OKULOVSKY DISTRICT
RUSSIA

PROFORMA**PRFBCE0617****Invoice Date** 13 Nov 2025**Customer** BI211204**Mode of transport** Road**Incoterm** EXW / DIE**Invoice Address**

ORGANIC PHARMACEUTICALS LLC
Territory of 2nd kilometer of the
Okulovka-kulotino Highway house1 Bld2 R7
174350 OKULOVSKY DISTRICT
RUSSIA

Product	Quantity	Unit Price	Amount
Order No : SON122030 / Customer order : 26			
BCE3154 ACTIVE SPHERE PEROXID_GLYCEROL Country of Manufacturing : GERMANY EU customs tariff : 15162098	68,000 Kg	208,45 EUR VAT : 0,00%	14 174,60 EUR

Exporter Company name : BIOCOSMETHIC SAS
Exporter address : 6 rue du Grand Chêne, 78830 Bonnelles, France
Product for cosmetic use only
Unit of measure : kilos

Exonération de TVA Article 262 1 du CGI
EORI FR792881450

Payment terms Transfer 30 days invoice date
Currency EUR
Bank detail CIC
IBAN : FR7610057190120002019900107 BIC : CMCIFRPP

NEW BANK ACCOUNT

Subtotal	14 174,60 EUR
Amount before tax	14 174,60 EUR
Taxes	0,00 EUR
Due amount	14 174,60 EUR

BIOCOSMETHIC

6 RUE DU GRAND CHENE - 78830 - BONNELLES - FRANCE
Tel +33.1.30.88.49.18 - E mail info@biocosmethic.com - www.biocosmethic.com
SASU au capital de 2 042 000,00 EUR - RCS 792881450 - TVA FR80792881450

- * Custom tariff indicated for information only.
 - * The products' sale is subject to our General Terms and Conditions of Sale (GTS) which, as a reminder, are on the back of this invoice
 - * Late payment penalty: the interest rate applied by the European Central Bank to its most recent refinancing operation plus 10 (ten) percentage points, according to the provisions of Article L441-6 of the French Commercial Code.
 - * Applicable collection costs : at minimum 40 euros, the lump sum indemnification specified in Article L441-6 of the French Commercial Code and the GTS (see overleaf).
 - * No discount will be granted for advance payment.
 - * Sales subject to the Retention of Title clause according to the provisions of the GTS (see overleaf).
- >>> In case of dispute between buyer and seller, only our product name (first line of itemization) is applicable between the two parties.<<<

PROFORMA

BIOCOSMETHIC

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GENERAL TERMS AND CONDITIONS OF SALE

1. General

"BIOLANDES" means Biolandes and/or Golgemma and /or Biocosmethic.

Any order for products of BIOLANDES (the "Products") implies the unconditional acceptance by the BUYER, that is to say, any natural or legal person at the origin of an order or a purchase of Products from BIOLANDES, of all the provisions of the General Terms and Conditions of Sale set out below ("the T&Cs"), which shall take precedence over any clause contained in the correspondence or the commercial documents of the BUYER, subject to any contrary written agreement between BIOLANDES and the BUYER. Any contrary condition imposed by the BUYER, will be void as against the seller, unless expressly accepted by BIOLANDES, regardless of when it could have been brought to the attention of BIOLANDES. BIOLANDES has the right to modify these General Terms and Conditions of Sale at any time. Unless otherwise expressly agreed, the T&Cs applicable between the parties are those in effect on the date of the order placed by the BUYER.

2. Order

BIOLANDES reserves the right to accept or reject, wholly or in part, any order.

The orders are final upon written confirmation by BIOLANDES.

The establishment by BIOLANDES of pro forma invoices, rates or any other document cannot be considered as a commitment by BIOLANDES to provide any of the items mentioned in these documents.

The opening of irrevocable letters of credit or any advance payment made by the BUYER does not constitute any commitment on the part of BIOLANDES to deliver the Products for a value corresponding to the amount of said letters of credit or said advance payments.

The modifications or cancellations of orders by the BUYER will only be taken into consideration by BIOLANDES if they are received by BIOLANDES in writing at least 3 working days before the shipment of Products available in stock and at least 10 days before the shipment of Products made to order. BIOLANDES may nevertheless apply Article 10 hereof.

BIOLANDES agrees, to the extent possible, to ship all the Products ordered by the BUYER, without incurring any liability for such shipments or for the fact that they are incomplete.

The unavailability of a Product resulting from an interruption in the manufacturing process, a shortage or any other circumstance, can have no effect on the rest of the order, nor engage the liability of BIOLANDES in any way.

3. Price and Payment Terms

The Products are invoiced on the basis of the prices in force on the day of the order confirmation by BIOLANDES but for deliveries staggered over time and relating to the same order or price offer from BIOLANDES and with a validity period, BIOLANDES reserves the right to increase the price previously agreed to at any time in the event of a substantial increase in the price of raw materials or cost of labour after a simple written notice given fifteen days before the date of entry into force of said modification. In this case the BUYER will have the option to terminate its order within forty -eight (48) hours, without fees or compensation.

The sales are governed by the Incoterms published by the International Chamber of Commerce ("I.C.C. Incoterms"), latest edition in force at the time of the order confirmation.

Unless otherwise stated, the prices are in Euros, EXW Incoterm (Ex -Works), BIOLANDES warehouses, excluding payable fees, taxes and duties.

Unless expressly stated otherwise between BIOLANDES and the BUYER, the payment interval for invoices sent by BIOLANDES is 30 (thirty) calendar days from the date of issue of the invoice. Due to the contract of sale being subject to French law, the time limit for the maximum payment that can be agreed by derogation in relation to the T&Cs between BIOLANDES and the PURCHASER may not exceed 60 (sixty) calendar days from the date of issue of the invoice. Any first order placed by a new client will have to be settled in cash on pro-forma invoice. The delivery will therefore be made on receipt of payment. No discount will be given for early payment.

Any amount not paid by its due date will result automatically and without prior notice, in the issuing of a bill from BIOLANDES to the BUYER for late interest charged at the interest rate applied by the European Central Bank at its most recent refinancing operation increased by 10 percentage points, calculated pro rata temporis, unless, where applicable, otherwise provided by law.

The simple delivery of a negotiable instrument or a cheque implying an obligation to pay does not constitute payment within the meaning of this article; rather their settlement at the agreed deadline constitutes payment.

Failure to pay a single invoice, immediately and automatically, and without prior notice, renders all invoices of BIOLANDES due, even those not yet expired.

BIOLANDES may, in addition, in the event of total or partial non -payment at due dates, suspend any delivery of Products until regularization of payment deadlines or require any form of payment guarantee for future orders of the BUYER.

To recall Articles L441-10 and R441-5 of the French Commercial Code, any professional in a situation of late payment is automatically debtor, with respect to the creditor, in addition to the late penalties, for a lump sum of €40 per invoice for recovery costs.

If the economic situation of the BUYER raises legitimate concerns, BIOLANDES reserves the right to change the payment terms for orders in progress by requiring collateral or a cash payment before delivery.

4. Reservation of ownership

The products sold by BIOLANDES shall remain the property of BIOLANDES until the effective and full payment of the price, of principal and interest. However, the transfer of risks to the BUYER takes place under the conditions described in Article 5 hereof.

The submission of a draft or of any other instrument creating an obligation to pay does not constitute payment. BIOLANDES may claim the Products, it being specified that the Products still in the possession of the BUYER will be presumed to be still outstanding. The exercise of this action by BIOLANDES will result automatically in the resolution of the sale. In this regard, the BUYER will be required to repay to BIOLANDES all of the costs occasioned by the recovery of Products and their return. If prepayments have been made by the BUYER, they will be retained by BIOLANDES as damages.

The BUYER is, however, authorized to resell the Products for the normal requirements of its business; however, in the event of non-payment by the BUYER of a single invoice from BIOLANDES by its due date, this authorization shall automatically cease.

5. Delivery - Risk transfer and transportation

Unless otherwise agreed, the products are made available to the BUYER in the warehouses of BIOLANDES (Incoterm EXW), which notifies the carrier designated by the BUYER.

Unless otherwise agreed, the transfer of risks to the BUYER is performed at the time of delivery of the Products to the carrier, at which time the delivery of Products by BIOLANDES to the BUYER is deemed to have taken place, despite the reservation of ownership.

Whatever the conditions of the sale and transportation, the BUYER agrees to take out insurance coverage, of at least equal to 110% of the invoiced value of the goods for all risks that may occur to the Products from the date of delivery of the Product to the carrier. The BUYER will be able to provide BIOLANDES, if BIOLANDES requests it, any documentary evidence proving that such insurance has actually been taken out.

The BUYER agrees not to sell, even at a discount, Products that are damaged, deteriorated or have undergone any other alteration. All such Products must be destroyed once they are not taken by BIOLANDES. This destruction must take place in the presence of authorized representatives of BIOLANDES or proven by sending BIOLANDES proof of the destruction of the Products concerned (photos, reports, bailiff's acts).

6. Shipments - Force majeure - Hardship clause

Shipping Time:

The shipping times indicated in the order confirmation are purely indicative and any delays or partial deliveries do not in any case, give the BUYER the right to cancel the sale, to refuse the goods or to claim damages and/or penalties.

Transportation claims

Before departure, the carrier must carry out a verification of the load. In the event of defects, the carrier must make specific written reservations on the transport document or refuse the load.

Upon reception of the Products, the BUYER shall only accept the Products delivered after it is assured in the presence of the carrier that they bear no signs of unsuitable warehousing in view of the nature of the Products, of deterioration, damage, alteration, loss or theft, and that their weight corresponds to that mentioned on the shipping documents.

When the Products delivered do not conform to the particulars given on the shipping document, have suffered deterioration, damage or alterations, or, in the event that some are missing, the BUYER must immediately draw up a declaration of non -conformity, including the full, precise and justified reservations on the transport document, and must confirm the exact nature of the non -conformity to the carrier, by registered letter with acknowledgement of receipt within a period of 48 hours, not including holidays, from the date of receipt of the Products. A duplicate of the letter must be sent simultaneously to BIOLANDES.

The BUYER shall be held responsible for any loss suffered by BIOLANDES due to non -compliance with this procedure.

BIOLANDES is released from its obligation to deliver in the event of unforeseeable circumstances and force majeure having the effect of delaying the execution of this obligation, without this being reasonably controlled or prevented, or making it substantially more burdensome. These situations include but are not limited to:

- o total or partial strike,
- o closure of the factory,
- o interruption to transport,
- o fire,
- o technical accident affecting the smooth running of the facilities,
- o difficulty of supply due for example to a shortage of raw materials,
- o delays caused by a subcontractor or a supplier,
- o pandemic,
- o inability to pass on a substantial increase in the price of raw materials or labor,

Force majeure has the effect of suspending the obligations of BIOLANDES for the duration of the event. If force majeure persists beyond 1 (one) month, each of the Parties may, subject to prior notification, terminate the unexecuted part of the order. The termination will be without compensation to either side, the prepayments corresponding to the unexecuted part of the order and that may have been paid by the BUYER being returned to it.

BIOLANDES is also released from its obligation to deliver in the event of a significant and unplanned increase in orders.

If a change of circumstances that was unpredictable at the time of conclusion of the contract makes its execution excessively burdensome for a party who had not agreed to assume the risk, that party may request a renegotiation of the contract with the other contracting party. It continues to perform its obligations during the renegotiation process. In the event of refusal or failure to negotiate, the parties may agree to the termination of the contract on the date and under the conditions that they determine, or by mutual agreement ask the judge for its adaptation. In the absence of agreement within a period of 6 (six) months, a party may ask the judge to review the contract or to end it, on the date and under the terms and conditions that it sets.

7. Quality control of the goods:

The buyer, professional of the same specialties, must carry out a thorough review of the conformity (nature, quantity, quality) of the Products during their receipt and/or during their use. When the products delivered by BIOLANDES are non -conforming in terms of the particulars given on the order issued by the BUYER relating to the quantity and/or the nature of the Products, the BUYER must within 5 working days of the date of receipt, address a return or exchange request to BIOLANDES. Any return or exchange will be subject to the prior agreement of BIOLANDES. The returns and exchanges duly accepted by BIOLANDES will be made under the following conditions:

- if the products are in good condition and in their original packaging, they will be returned at the rate in effect on the date of shipment,
- if the Products are damaged due to the BUYER, they will be returned subject to the depreciation found by the commercial service of BIOLANDES. In the event of dispute, the amount of this depreciation will be fixed by an expert appointed by mutual agreement of the Parties.

The BUYER shall have to prove the existence of the defects or anomalies of the Products to which it refers. BIOLANDES reserves the right to carry out any verification on site. The BUYER shall in no case return Products without having first obtained the written agreement of BIOLANDES, which may at its option either replace the Products or issue a credit in favour of the BUYER. The BUYER agrees to notify BIOLANDES of the exact place where the Products have been stored, and to allow the representatives of BIOLANDES to inspect this place at any time during the normal opening hours in order to verify that the Products are properly stored.

Defects that are not reasonably detectable must be reported within 15 (fifteen) business days after the reception of the Products.

The fact of the BUYER not claiming within the time limits specified above is considered an absolute and unconditional waiver of its right.

8. Liability - Warranties

The liability of BIOLANDES is expressly limited to the purchase price of the quantity of Products in respect of which the claim is made. In addition, in no circumstance can Biolandes be held responsible for material and/or immaterial damages, consecutive or not (such as loss of earnings, income, etc.) incurred by the PURCHASER or a third party, except in the case of gross negligence or wilful misconduct.

BIOLANDES guarantees the conformity of the Products sold in their original packaging to the regulations in force, and to the specifications required.

Are expressly excluded to the extent permitted by applicable law, all warranties other than those described in the T&Cs, whether they are express or implied and including implied warranties of merchantability and fitness for a particular purpose, and those concerning market value, description, condition and performance.

BIOLANDES will in no event be liable for improper use of the Products, notably, but not exclusively, in the following cases:

- Loss of identity of the Product following a change in its original state (including physical and/or chemical and/or microbiological qualities) due to the BUYER and/or the end user. Any complaint relating to a Product which has undergone various additions due to the BUYER and/or the end user, thereby changing its initial characteristics, will not be admissible.
- Inappropriate and/or incorrect use of the Product, or use that is inconsistent with prudence or industry best practices.
- Degradation of the Product due to storage in unsuitable conditions.

All data provided by BIOLANDES in the form of certificates and sheets, such as, but not limited to, safety data sheets, technical data sheets and information on allergens, are the result of internal audits performed on the basis of methodologies specific to BIOLANDES, or external, are accurate according to the state of knowledge of BIOLANDES at the date of the certificate or the sheet, and are given for information purposes only, without warranty.

9. Violation of the provisions of these general terms and conditions of sale

Any violation of the provisions of these T&Cs may entail the cessation of any delivery, without prejudice to any other rights and remedies that may be exercised by BIOLANDES.

10. Penalty clause

In accordance with the French Civil Code, in the event of cancellation of the order due to a fact attributable to the BUYER, and due to the specificity of the products sold, BIOLANDES reserves the right to require from the latter a penalty of 30% of the amount excluding taxes of the initial confirmed order, regardless of the conservation of prepayments that may have been paid.

11. Confidentiality

Each of the Parties undertakes to keep confidential, any information of a technical, commercial, financial or other nature received from the other party orally, in writing or by any other means of communication, during the negotiation and/or the execution of any order. This obligation of confidentiality shall apply for the entire duration of execution of the order and for 5 (five) years after its completion or termination, for whatever reason. It does not apply to general information known to the public and of public knowledge.

12. Personal data – GDPR

All processing and uses of personal data comply with all pertinent local regulations concerning the protection of personal data, in particular the stipulations of French Act No. 78 -17 on Information Technology, Data Files and Civil Liberties (DPA) dated 6 January 1978, amended, and the EU General Data Protection Regulation or "GDPR" (EU 2016/679). Our confidentiality charter can be viewed on our website or upon request submitted to our company.

13. Absence of waiver, validity, applicable law and competent courts

The fact of not exercising at any time a prerogative recognized under these T&Cs or the fact of not requiring the performance of any provision of said Conditions, shall in no way be construed as an express or implied waiver of the right to exercise that prerogative in the future or the right to require the scrupulous performance of the commitments made herein.

If a provision of any of these T&Cs is declared void, unwritten or unenforceable by a court or an administrative body or authority, such a decision shall not affect in any way the validity of the other provisions of these T&Cs.

The only law applicable to these will be the French law on the exclusion of the provisions of the Vienna Convention on the International Sale of Goods.

These T&Cs are written in French and in the event that they are translated into one or several foreign languages, the French text will prevail in the event of dispute. Any action and any dispute to which these T&Cs and the contracts concluded on their application could give rise, in particular concerning their interpretation, validity, execution or termination, as well as more generally any dispute and action relating directly or indirectly to trade relations existing or having existed between the parties, their execution, the arrangements or the consequences of their termination or of their breakdown, whether the reason for these disputes or actions is contractual or tortious liability, common law, the law on competition, restrictive practices or other, and which have not been resolved amicably within 45 days of their notification by the most diligent party, will be submitted to the Commercial Court of Bordeaux (France), which is expressly attributed jurisdiction, also in the case of summary proceedings, multiple defendants and/or third party proceedings.

Biolandes SAS with a capital of €15,500,000 - 349 190 108 RCS Mont de Marsan - Registered office: 2760 Route de Bélis, 40420 LE SEN
Golgemma SAS with a capital of €803 600 – 384 928 552 RCS Carcassonne – Registered office: route de Fa, 11260 ESPERAZA
Biocosmethic, SAS au capital de 2 042 000 € - 792 881 450 RCS Versailles – Siège social : 6 rue du Grand Chêne, 78830 BONNELLES

SRC V12/07/2024